

But in a subsequent case Lord Chancellor Campbell and the Lords Justices upon appeal concurred in refusing the application, on the ground that it would work an injury to the remainderman. Lord Campbell observed that no more precise rule could safely be laid down than "that in the absence of any special circumstances which might make the desired transfer asked by the tenant for life beneficial to those in remainder, *irrespective of pecuniary calculations*, the transfer ought not to be permitted, if *on pecuniary calculations* it might be injurious to those in remainder." And Turner, L. J., appears to * have assented to this view, [*310] giving as an instance in which the Court might properly make such investment, where "from the exigency of a family it would be desirable for the *children* that the income of the *parents* should be increased." But he added that the decision was "not intended to embarrass trustees where the fund was not in Court, and that they would, in making such an investment, be entitled to the protection of the Court if they acted *bonâ fide* to the best of their discretion" (a).

Accordingly where trustees were directed to invest in the public stocks or funds, and they retained English and Irish Bank stock and East India stock *in specie*, it was held (there being no imputation on their *bona fides*) that they had not exceeded their duty, and the tenant for life was declared to be entitled to the actual income which had arisen from those securities since the passing of the Act which authorized them, but not to the actual income which had accrued before the passing of the Act (b).

And where Bank stock stood settled upon A. for life, with remainder to his children, if any, with remainder to certain persons absolutely, and A. (who had been married twenty-seven years without issue) applied, with the consent of the ultimate remaindermen, for an investment in East India stock, M. R. said he never sanctioned such an investment

Turner became unnecessary; but both L. JJ. assented to the principle laid down in *Cockburn v. Peel*, 3 De G. F. & J. 170.

(a) *Cockburn v. Peel*, 3 De G. F. & J. 170; and see *Re Boyces Minors*,

1 Ir. R. Eq. 45; *Ungless v. Tuff*, 9 W. R. 729; *Waite v. Littlewood*, 41 L. J. N. S. Ch. 636.

(b) *Hume v. Richardson*, 4 De G. F. & J. 29.